

		(Decl. of Olinik¶6.) Defendant fails to show it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. As such, the unopposed Motion is GRANTED. Defendant McSen Realty Corp. is ordered to provide verified responses to Request for Production of Documents (Set 1), without objections, within 30 days service of the Notice of Ruling. Sanctions against Defendant McSen Realty Corp are awarded in the amount of \$1000, to be paid within 30 days Moving Party to give notice.
12.	30-2024-01412435 Beseau vs. Ladera Ranch Maintenance Corporation	1. Motion for Summary Judgment and/or Adjudication Cross-Defendant Bobrick Washroom Equipment Inc. (“Cross-Defendant”) filed a motion for summary judgment, seeking summary judgment or adjudication on the (1) first cause of action for implied indemnity, (2) second cause of action for comparative contribution, (3) third cause of action for declaratory relief, and (4) fourth cause of action for negligence (products liability) as alleged in Ranch Maintenance Corporation’s Cross-Complaint against Cross-Defendant Bobrick Washroom Equipment Inc. Cross-Complainant Ranch Maintenance Corporation (“Cross-Complaint”) opposes the motion. For the reasons discussed below, and based on applicable law, the Motion is DENIED. I. CROSS-DEFENDANT’S LIABILITY FOR THE SHOWER BENCH COLLAPSE IS A TRIABLE ISSUE OF FACT Cross-Complainant seeks to hold Cross-Defendant liable for the shower bench collapse pursuant to the legal theory of negligence based on product liability. In the operative Cross-Complaint, Cross-Complainant alleges that Cross-Defendant negligently “designed, manufactured, assembled and sold the BOBRICK shower seat/bench, model no. 5181 or 5191.” (Cross-Complaint, ¶ 31.) The Cross-Complaint states: “Cross-Complainant is informed and believes and thereon alleges that Cross- Defendant, BOBRICK, and ROES 1 through 20 knew that the BOBRICK shower seat/bench, model no. 5181 or 5191 was manufactured, designed, assembled and sold for use by Cross-Complainant but was defective and dangerous in the manner in which it was intended to be used by failing to support individuals with a weight of less than 500 pounds.” (Cross-Complaint, ¶ 36.) In a discovery response, Cross-Complainant stated: “The design of the bench that failed, produced by Bobrick, does not have direct vertical support as the subsequently developed and designed bench in their product catalog. Given that design, the potential for excessive forces on the attachment screws, consistent with the design of the accident bench, is magnified given the rise that the potential failure, that Plaintiff’s claims occurred, gave rise to her accident and injury.” (Response to Special Interrogatory No. 18.)

“One may seek recovery in a products liability case on the theory of negligence.” (*Johnson v. United States Steel Corp.* (2015) 240 Cal.App.4th 22, 30–31.)

To prevail on the claim, plaintiff must show that (1) defendant owed plaintiff a legal duty of care, (2) defendant breached that duty, (3) the breach was a proximate or legal cause of the injury, and (4) the defect in the product was due to defendant’s negligence. (*Gonzalez v. Autoliv ASP, Inc.* (2007) 154 CA4th 780, 793; see also (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1304-1305 [“a plaintiff must also prove ‘an additional element, namely, that the defect in the product was due to negligence of the defendant.’ ”].)

“Design defects appear in products that, although properly manufactured, are dangerous because they lack a critical feature needed to ensure safe use.” (*Williams v. J-M Manufacturing Co., Inc.* (2024) 102 Cal.App.5th 250, 256–257, *review denied* (Aug. 28, 2024).)

“[T]he test of negligent design ‘involves a balancing of the likelihood of harm to be expected from a machine with a given design and the gravity of harm if it happens against the burden of the precaution which would be effective to avoid the harm.’” (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1304–1305.)

The Court finds that, whether the shower bench contained a design defect, is a triable issue of material fact that must be resolved by the fact finders.

For example, Cross-Complainant argues that the design is defective because Cross-Defendant opted not to include legs for the shower bench. Whether the shower bench contained legs is not a disputed fact – the parties agree that the shower bench did not have legs. Defendant argues that the absence of legs did not cause or contribute to the collapse whereas Plaintiff argues this absence of bench legs was negligent.

As discussed in *Ortiz v. Daimler Truck North America LLC* (2025) 112 Cal.App.5th 608, 622, *review denied* (Oct. 15, 2025), when a product omits an available safety feature designed to prevent an accident, it is a question for the jury as to whether that omission was ultimately negligent and a proximate cause of the accident. In *Ortiz*, the car designer omitted “Detroit Assurance 4.0,” which is a collision avoidance system. (See *Ortiz v. Daimler Truck North America LLC* (2025) 112 Cal.App.5th 608, 622 [“Under plaintiffs’ evidence, then, a reasonable juror could find that Ortiz died because Daimler Trucks omitted an available safety feature designed to prevent this very type of foreseeable accident. Those types of facts support a finding of proximate cause.”].) The *Ortiz* court found that whether the defendant’s decision to omit the safety feature constituted a negligent design such that it caused the accident at issue in that case was a triable issue of fact for the jury to determine. This Court finds that the *Ortiz* analysis and conclusions apply.

Here, Cross-Defendant omitted shower legs. Based on the above, whether the omission of shower legs caused the shower bench to collapse and the subject accident to occur is a triable issue of fact for the jury. Cross-Defendant’s argument that the shower bench was installed improperly and that it functioned properly for over 20 years are persuasive arguments but only amount to facts for the jury to weigh in determining what ultimately caused the collapse.

Given the above, the Court finds that Cross-Defendant’s liability for the shower bench collapse is a triable issue of act. The Motion for Summary Judgment is **DENIED** as to the fourth cause of action for negligence based on products liability.

Each of the remaining causes of action depend on the Court finding that Cross-Defendant is not liable for Plaintiff's damages. As discussed above, there are triable issues of material fact as to whether Cross-Defendant's design of the shower bench at issue caused or contributed to the accident. For the same reasons discussed above, the Motion for Summary Judgment is **DENIED** as to the first cause of action for implied indemnity, second cause of action for contribution, and third cause of action for declaratory relief.

In sum, the Motion is **DENIED in its entirety**.

The Court also notes that Cross-Defendant drafted the separate statement such that all elements of the fourth cause of action are presented under the same issue. The separate statement contains four issues, which are broken down by cause of action. The separate statement does not separately address each element of those causes of action. Moreover, each issue is supported by the same set of facts, even though they are separated into separate issues. Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if there is a triable issue as to any of the facts, all arguments fail since they are presented under the same issue and each issue is supported by the same facts.

II. OBJECTIONS

A. Cross-Complainant's Objections

Cross-Complainant's objections to the admissibility of the installation guide are **OVERRULED**. Cross-Complainant takes issue with the Installation Instructions proffered by Cross-Defendant, arguing that such instructions were dated 2018 and therefore are inapplicable. As Cross-Defendant points out, however, Nadan testified that such instructions are the instructions for the shower bench at issue. At this time, the Court finds that Nadan has sufficient personal knowledge to testify that the 2018 installation guides are the same as those used when the shower bench at issue was sold/installed.

Cross-Complainant's objections to Nadan's conclusion on the cause of the shower bench collapse is **SUSTAINED**. Nadan has not established the requisite personal knowledge or expertise to testify as to the cause of the shower bench collapse. Nadan testified that in his role at the Cross-Defendant's company, he "oversees legal matters and managing outside counsel, overseeing corporate real estate transactions and development and managing Bobrick's mergers and acquisitions." This is insufficient to testify as to the cause of the shower bench collapse.

The Court declines to address the objections to Plaintiff's medical records as such records were not "material to its disposition of the motion." (Code Civ. Proc., § 437c. subd. (q).)

Cross-Complainant's objections to the expert opinion of James Mason are **OVERRULED** for the purposes of this motion only.

B. Cross-Defendant's Objections

Cross-Defendants objections to the Declaration of Christina Bennett are **OVERRULED**.

Cross-Defendants objections to the Declaration of Ken Gibson are **OVERRULED**.

Cross-Complainant to give notice.